

Court No. - 37

Case :- WRIT - C No. - 29077 of 2013

Petitioner :- M/S. Shyam Forging (P) Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And
Anothers

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Nripendra Mishra

Hon'ble Sheo Kumar Singh,J.

Hon'ble Brijesh Kumar Srivastava-II,J.

Heard Sri Mayank Agrawal, learned Advocate, who appears in support of this petition and Sri Chandan Agrawal, learned counsel appeared for respondents.

During the course of the argument, petitioner states that so far as amount mentioned in the bill is concerned, there is no dispute. He wants to deposit the same but at the same time he wants some time for the simple reason that the amount is huge.

Certainly, the amount is huge for which petitioner needs breathing/reasonable time.

Petitioner placed before this Court an earlier order passed in Writ C No. 15680 of 2013 and submits that the authority may make necessary arrangement.

The case of which reference has been given in fact was that the electricity connection was disconnected and immediate restoration was needed.

6.5 of the Electricity Supply Code 2005 permits the competent authority to grant facility and he is to consider the financial stress and other aspects which is to be placed by the petitioner.

Accordingly, petitioner is permitted to move certified copy of this

order along with fresh representation stating the financial stress upon which the competent authority will pass appropriate orders, keeping in mind the discretion/powers conferred on him within shortest possible time preferably within a period of three weeks from the date of receipt of a certified copy of this order.

It is made clear that after the order is passed by the competent authority, it is for the petitioner to ensure the compliance.

At this stage, petitioner showed his apprehension about disconnection of the electricity upon which petitioner will suffer.

If authority has been permitted to examine the matter then taking any coercive steps may not be justified.

Be as it may. keeping in mind 6.5 of the Electricity Supply Code, 2005, we direct the petitioner to deposit the amount to the extent of 40% of the total dues with the competent authority, upon which he may pass appropriate orders on merits in respect to the petitioner's claim, as directed above and no electricity disconnection will take place. However, petitioner is to pay regular bill as and when it is served on him

Writ petition stands disposed of.

Order Date :- 22.5.2013

Puspendra